

24STCV20824 24STCV20824

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-09-11

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Case Number: 24STCV20824 Hearing Date: September 11, 2026 Dept: 512

HEARING DATE: Fri., September 11, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Pascascio v. Salazar COMP. FILED: 08-16-24

CASE NUMBER: 24STCV20824

NOTICE: OK

PROCEEDINGS: MOTION TO BE RELIEVED AS COUNSEL

MOVING PARTY: Counsel Mary Guirguis of Downtown LA Law Group

RESP. PARTY: None

MOTION TO BE RELIEVED AS COUNSEL

(CCP § 284, CRC, rule 3.162)

TENTATIVE RULING:

Counsel Mary Guirguis of Downtown LA Law Group's unopposed Motion to be Relieved as Counsel for Plaintiff Jayden Pascascio is GRANTED. However, a corrected MC-053 form entitled "Order Granting Attorney's Motion to Be Relieved as Counsel-Civil" must be resubmitted with the Court within the next 5 days.

The Court's Ruling and Attorney's relief as Counsel of record for client is not effective until Proof of Service of the Order signed by the Court upon the client is served and filed in this action. Until then, counsel continues to be counsel of record. (Cal. Rules of Court 3.1362(e).)

Plaintiff's Counsel is ordered to give notice.

SERVICE:

[X] Proof of Service Timely Filed (CRC, rule 3.1300) OK

[X] Correct Address (CCP §§ 1013, 1013a) OK

[X] 16/21 Court Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: None filed as of September 7, 2026 [] Late [X] None

REPLY: None filed as of September 7, 2026 [] Late [X] None

ANALYSIS:

I. Background

On August 16, 2024, Plaintiff Jayden Pascascio ("Plaintiff") filed the instant action against Defendant Zayola Salazar ("Defendant") and Does 1-50.

On March 13, 2025, Defendant, proceeding pro per, filed an Answer.

On August 18, 2026, Counsel Mary Guirguis of Downtown LA Law Group ("Counsel") filed the instant Motion to be Relieved as Counsel for Plaintiff (the "Motion").

No Opposition to the Motion has been filed.

II. Legal Standard

Code of Civil Procedure section 284 states that "the attorney in an action...may be changed at any time before or after judgment or final determination, as follows: (1) Upon the consent of both client and attorney...; (2) Upon the order of the court, upon the application of either client or attorney, after notice from one to the other." (Code Civ. Proc., § 284; Cal. Rules of Court, rule 3.1362.) "The determination whether to grant or deny a motion to withdraw as counsel lies within the sound discretion of the trial court." (Manfredi & Levine v. Superior Court (1998) 66 Cal.App.4th 1128, 1133); see Lempert v. Superior Court (2003) 112 Cal.App.4th 1161, 1173.)

An application to be relieved as counsel must be made on Judicial Counsel Forms MC-051 (Notice of Motion and Motion), MC-052 (Declaration), and MC-053 (Proposed Order). (Cal. Rules of Court, rule 3.1362, subds. (a), (c), (e).)

In addition, California Rules of Court, rule 3.1362 subsection (d) requires that the notice of motion and motion, declaration, and proposed order be served on the client and all other parties who have appeared in the case by personal service, electronic service, or mail. If the notice is served by electronic service, it must be accompanied by a declaration stating that the electronic service address is the client's current electronic service address. (Cal. Rules of Court, rule 3.1362, subd. (d)(2).) As used in this rule, "current" means:

“[T]he address was confirmed within 30 days before the filing of the motion to be relieved.

Merely demonstrating that the notice was sent to the client’s last known address and was not returned or no electronic delivery failure message was received is not, by itself, sufficient to demonstrate that the address is current.”

(Cal. Rules of Court, rule 3.1362, subd. (d).)

III. Discussion

On August 18, 2026, Counsel moved the Court to be relieved as attorney of record for Plaintiff. (MC-051.) Counsel filed MC-051, MC-052, and MC-053 Forms. (Cal. Rules of Court, rule 3.1362, subds. (a), (c), (e).)

Counsel seeks to be relieved on the following grounds:

This Motion is based on numerous and diligent efforts made by Plaintiff’s Counsel to communicate with Plaintiff. Despite repeated attempts by telephone, email, text message, and U.S. mail, including skip-tracing efforts to locate Plaintiff, Plaintiff has remained unresponsive. Plaintiff has also failed to provide information and direction necessary to investigate the facts of the case, evaluate the matter, and respond to litigation developments. As a result, Counsel has been unable to obtain Plaintiff’s authority regarding important case decisions or effectively move the matter forward. Plaintiff’s continued lack of communication and cooperation has resulted in an irreparable breakdown of the attorney-client relationship, rendering continued representation unreasonably difficult and necessitating counsel’s withdrawal.

(MC-052, ¶ 2.)

The Court is satisfied with Counsel’s reasons for seeking to be relieved. (Cal. Rules of Professional Conduct, rule 1.16.) The Court also finds the Motion satisfactorily complies with California Rules of Court, rule 3.1362.

However, the MC-053 Form needs to be resubmitted with accurate dates.

Accordingly, Counsel’s Motion is GRANTED. However, the corrected MC-053 form entitled “Order Granting Attorney’s Motion to Be Relieved as Counsel-Civil” must be resubmitted with the Court within the next 5 days of this ruling providing all the accurate dates and future dates.

The Court’s Ruling and Attorney’s relief as Counsel of record for client is not effective until Proof of Service of the Order signed by the Court upon the client is served and filed in this action. Until then, counsel continues to be counsel of record. (Cal. Rules of Court 3.1362(e).)

IV. Conclusion & Order

Accordingly, Counsel Mary Guirguis of Downtown LA Law Group’s unopposed Motion to be Relieved as Counsel for Plaintiff Jayden Pascascio is GRANTED. However, a corrected MC-053 form entitled “Order Granting Attorney’s Motion to Be Relieved as Counsel-Civil” must be resubmitted with the Court within the next 5 days.

The Court's Ruling and Attorney's relief as Counsel of record for client is not effective until Proof of Service of the Order signed by the Court upon the client is served and filed in this action. Until then, counsel continues to be counsel of record. (Cal. Rules of Court 3.1362(e).)

Plaintiff's Counsel is ordered to give notice.